

**CALAVERAS PLANNING COALITION v
CALAVERAS COUNTY BOARD OF SUPERVISORS, et al**

19CV44471

DEFENDANTS' MOTION TO DISMISS

This case involves a writ of mandate brought by Petitioner Calaveras Planning Coalition ("CPC") against the Calaveras County Board of Supervisors ("Board") November 12, 2019 approval of the General Plan Update ("GPU.") CPC alleges that the GPU violates land use law. The Petition challenges the County's approval of the 2019 Calaveras County General Plan Update under the California Environmental Quality Act (CEQA) (Pub. Resources Code, § 21000, et seq.), the Planning and Zoning Law (Gov. Code, § 65300, et seq.), and the California Public Records Act (Gov. Code, § 6250, et seq., now § 7920 et seq.).

Now before the Court is a motion to dismiss pursuant to Code of Civil Procedure section 583.360 brought by the Board. CPC opposes the motion.

I. Legal Standard

California Code of Civil Procedure section 583.310 requires that "an action shall be brought to trial within five years after the action is commenced against the defendant."

Code of Civil Procedure section 583.360 provides:

- (a) An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article.
- (b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.

Code of Civil Procedure section 583.360 forbids courts from exercising any discretion regarding the failure to bring its case to trial within the five-year timeframe "except as expressly provided by statute." (*Gaines v. Fidelity National Title Ins. Co.* (2016) 62 Cal.4th 10801, 1089.) The only grounds for courts to extend the five-year deadline are

set forth in Code of Civil Procedure section 583.340, which provides that the time during which any of the following conditions existed shall be excluded from the computation of time within which an action shall be brought to trial:

- (a) The jurisdiction of the court to try the action was suspended;
- (b) Prosecution or trial of the action was stayed or enjoined; or
- (c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.

II. Analysis

Board moves to dismiss this petition on the grounds that CPC filed the action on December 9, 2019. Board argues that even with the six month extension afforded during COVID-19, the time limit to bring this case to trial expired on June 9, 2025.¹ Board argues that none of the limited statutory exceptions that would extend the time to bring the matter to trial are present in this case.

In opposition, CPC argues that court can extend the five-year deadline because in this case it was “impossible, impracticable, or futile” to bring the matter to trial sooner. CPC has the burden to prove a circumstance of impracticability. (*Tamburina v. Combined Ins. Co. of America* (2007) 147 Cal.App.4th 323, 329.) “What is impossible, impracticable, or futile is determined in light of all the circumstances of a particular case, including the conduct of the parties and the nature of the proceedings.” (*Brown & Bryant, Inc. v. Harford Accident & Indemnity Co.* (1994) 24 Cal.App.4th 247, 251.) Notably, “the critical factor is whether the plaintiff exercised reasonable diligence in prosecuting its case.” (*Ibid.*)

CPC’s primary argument is that the Board’s own behavior caused the delay because for approximately seventeen months the Board refused to provide CPC with the documents needed to create the administrative record. CPC also asserts that the delay in creating the record allowed the Board to wait seventeen months to file its Answer which delayed the matter. However, CPC stipulated to allowing the Board to wait to file its Answer until

¹ Notably, CPC has never filed a motion for preferential trial setting.

after the administrative record was certified – which has never happened. (Supplemental Declaration of Christopher L. Stiles (“Supp. Stiles Decl.”) ¶ 8, Ex. 13.) Although CPC cites to Declaration of Thomas Infusino, no such declaration was provided to the Court.

What is before the Court is a record of thirty-two stipulations between February 2020 and May of 2025 giving CPC more time to gather documents and organize the administrative record. While the Court acknowledges that the administrative record may be vast in this matter, CPC has not provided any legal authority that would authorize the Court to toll the five-year deadline based on years of stipulations to delay production of the administrative record. Moreover, the Court is persuaded by the Supplemental Declaration in which Mr. Stiles avers that his firm “has litigated hundreds of CEQA cases and has either prepared or participated in the preparation of hundreds of administrative records on behalf of both petitioners and respondents.” (Supp. Stiles Decl. ¶ 3.) Some of those records have been over 500,000 pages. (*Id.* ¶ 4.) Mr. Stiles provides multiple examples of large administrative records which his firm has prepared, none of which have taken more than 79.6 paralegal hours. (*Id.* ¶ 7.) CPC has not provided any evidence explaining why or how it has been unable to prepare the record in this matter over the last five years.

Accordingly, the Board’s Motion to Dismiss is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the Proposed Order submitted by Board.

ARIZA v LAKESIDE VENTURES, LLC

22CV46059

DEFENDANTS' MOTION FOR SANCTIONS

This matter involves a lengthy dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.") On June 13, 2025, the Court denied Helen Ariza ("Plaintiff")'s motion to disqualify attorney Kathleen E. Finnerty, Esq. ("Finnerty") who has been retained to represent Defendants Lakeside Ventures LLC ("Lakeside") and Bonnie Hurley (aka Tuckerman-Aho) ("Tuckerman-Aho") (collectively, "Defendants".)

Now before the Court is Defendants' motion for sanctions pursuant to Code of Civil Procedure section 128.7.

I. Background

During a phone call with Finnerty on April 18, 2025, Plaintiff alluded to her intention to file a motion to disqualify based on her unsubstantiated belief that Mr. Tuckerman was paying Defendants' legal fees. (Finnerty Decl. ¶ 4(a).) During that call, Finnerty informed Plaintiff that such unsubstantiated belief was not proper grounds to bring a motion to disqualify (*Id.*, ¶ 4(a)(b).) Finnerty received a copy of the motion on May 9, 2025. (*Id.* ¶ 4(d).) On May 10, 2025, Finnerty wrote to Plaintiff outlining the multiple reasons her motion was far below pleading standards, even for self-represented litigants, and demanded a withdrawal of her motion by May 13, 2025. (*Id.* ¶ 4(e)., Ex. B.) Plaintiff did not respond to that letter and instead served it on the evening of May 15, 2025. (*Id.* ¶ 4(f).)

On May 16, 2025, Finnerty served her opposition to the motion and all supporting documents on Plaintiff together with correspondence stating that she had twenty-one days within which to withdraw the motion or she would file this motion for sanctions. (*Id.* ¶ 8, Ex. C.) Plaintiff did not withdraw the motion and the Court ruled against Plaintiff on June 13, 2025.

Defendants seek \$8,733.50 in attorney's fees as well as an order striking the motion to disqualify.